

| #   | Case Name                                       | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
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|     |                                                 | <p>Should Plaintiffs still wish to pursue the proposed amendments to include a conspiracy claim against Defendants Richter, Mello and Fast Eviction Service, Plaintiff shall file and validly serve a renewed petition, accompanied by evidence and the proposed pleading, and file a proof of service that complies with the requirements of the Code of Civil Procedure.</p> <p>Clerk shall provide notice. Service of the notice upon Plaintiffs shall be by U.S. Mail.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 56. | <p>Applegate v. Everts</p> <p>2025-01507318</p> | <p>Defendant Brockton Everts' Motion to Set Aside the Default is CONTINUED to September 21, 2026 at 2:00 p.m. in Department C28.</p> <p>"Before filing any document, a party must serve . . . one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule." (CRC, Rule 8.817, subd. (a)(1).) In addition, "[t]he party must attach to the document presented for filing a proof of service showing service on each person or entity required to be served. . . ." (CRC, Rule 8.817, subd. (a)(2).) "Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." (CRC, Rule 3.1300, subd. (c).)</p> <p>Here, Defendant has failed to file a valid proof of service of the motion on the opposing party. Therefore, the hearing is continued to allow Defendant to properly serve and file the motion and proof of service in accordance with the Code.</p> <p>Defendant shall serve the motion and supporting documents no later than July 17, 2026, and file a proof of service with the court within 5 days of service.</p> <p>Plaintiff is urged to familiarize himself with the Rules of Court as well as the Code of Civil Procedure. "Mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985.)</p> <p>Clerk shall provide notice of this ruling.</p> |
| 57. | <p>OCMH Inc. v. Daniel</p>                      | <p>Defendant Shipjoy, LLC's motion to set aside default and default judgment is GRANTED. (Code Civ. Proc., § 473, subd. (b).)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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|   | 2023-01329371 | <p>The court hereby VACATES the 7/18/25 order striking Shipjoy’s cross-complaint and first amended answer to the first amended complaint, and SETS ASIDE Shipjoy’s default entered on 7/18/25 and the default judgment entered on 10/13/25.</p> <p>Shipjoy has brought this motion within a reasonable time and has acted diligently in doing so. (See <i>Younessi v. Woolf</i> (2016) 244 Cal.App.4th 1137, 1145 [“reasonable time” means moving party must show diligence in making the motion after discovery of the default].)</p> <p>Shipjoy’s default was entered by the court via a signed minute order on 7/18/25, and the default judgment was entered on 10/13/25. Shipjoy did not receive notice of the entry of its default because the 7/18/25 order was served on its prior counsel and not Shipjoy, who was no longer represented by counsel at that time. (Kim Decl. at Ex. D [clerk’s cert. of service]; D. Daniel Decl. ¶ 7; Y.I. Daniel Decl. ¶ 7.)</p> <p>Plaintiff OCMH, Inc. later mail-served Shipjoy with its default prove-up package (including its request for default judgment) on 9/11/25 (see ROA Nos. 150, 152), and Shipjoy retained new counsel shortly thereafter on 9/30/25. (D. Daniel Decl. ¶ 10.) Shipjoy’s new counsel then sought a stipulation setting aside the default/default judgment, but plaintiff refused. (Kim Decl. ¶¶ 12-13.) Subsequently, Shipjoy’s managers/owners were delayed in bringing about this motion due to certain religion observations (see D. Daniel Decl. ¶ 12; Y.I. Daniel Decl. ¶ 12), but brought this motion not too long after (initially on 11/6/25), less than a month after the default judgment was entered.</p> <p>Shipjoy has also adequately demonstrated its default and the default judgment were the result of mistake, surprise, and/or excusable neglect. (See Code Civ. Proc., § 473, subd. (b); <i>Kramer v. Traditional Escrow, Inc.</i> (2020) 56 Cal.App.5th 13, 28; see also <i>Johnson v. Pratt &amp; Whitney Canada, Inc.</i> (1994) 28 Cal.App.4th 613, 623-624 [striking of answer not necessarily equivalent to entering default]; D. Daniel Decl. ¶¶ 7-8 [no notice that its default might be entered at the 7/18/25 OSC hearing; no notice that its default was entered on 7/18/25].)</p> <p>Shipjoy has also properly submitted copy of its proposed answer and cross-complaint, consisting of Shipjoy’s operative answer and cross-complaint previously filed in this action on</p> |